

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in regular session on Monday, April 5, 2021 at 6:00 p.m. in the commissioners' conference room, Vance County Administration Building, 122 Young Street, Henderson, NC. Those commissioners present were as follows: Chairman Dan Brummitt, Vice-Chairman Leo Kelly, Jr., Commissioners Carolyn Faines, Thomas S. Hester, Jr., Archie B. Taylor, Jr., and Gordon Wilder.

Absent: Commissioner Yolanda Feimster.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Open Broadband representatives Alan Helias, Jeff Loyd and Will Gross appeared before the board and provided an update on the county's broadband initiative. Mr. Helias stated that equipment has been installed on the Warrenton Road and New Hope water towers and they are in the beginning stages of testing. Testing will determine maximum distance and coverage areas from the towers and if more signal locations may need to be added. Customers should be online within the next few weeks. He noted that the price has increased from \$39.95 to \$44.99 per month. The board asked for a map showing coverage areas of these two sectors.

Regarding downtown Wi-Fi, Mr. Gross noted that they are working to complete all of the rooftop agreements and Wi-Fi should be operational within the next few weeks. Regarding Kittrell, rooftop agreements have been secured and equipment will be installed on the water tower behind the fire station by the end of May.

Public comments were heard next. Mr. D. J. Jones introduced himself as the new CEO of the Boys & Girls Club of North Central North Carolina. He thanked the board for its support over the years and stated that the Clark Street location has been functioning throughout the pandemic on a limited capacity and is working to get back to full capacity as soon as possible. He stated that he would like to come before the board annually to provide an update on Club activities.

North Carolina Department of Transportation representatives Julie White, Jason Orthner and Marston Raue were next on the agenda to provide an update on the S-Line Rail Corridor Project. Ms. Raue, project manager, stated that the S-Line runs from Hamlet, NC through Southern Pines, Sanford, Raleigh, Franklinton, and Henderson and ends in Norlina. It does connect through Virginia; however the railroad infrastructure has been pulled up, but the right-of-way still exists.

This has been a 30 year project and now this corridor is ready to build. The missing piece has been funding to purchase the rail corridor from CSX, and DOT has received a \$47.5 million grant through the Consolidated Rail Infrastructure Safety Improvements (CRISI) Grant program for this purpose. The section of the track is part of an inactive freight line and will be converted for use as part of the Southeast Rail Corridor. The project will connect communities between Raleigh and the Virginia state line and will reduce the trip time from Raleigh to Washington D.C. by up to 90 minutes.

FTA Transit-Oriented Development (TOD) Planning Grant. Ms. Raue stated that DOT received a grant in the amount of \$900,000 to plan for TOD at 13 stations along the proposed corridor. Community partners including the City of Henderson, Wake Forest, Franklinton, Raleigh, Apex, and Sanford are providing funding and strong support for TOD. Wake and Warren Counties have also expressed their interest in providing funding. She stated that Vance County's participation in the TOD grant would provide an opportunity to be an active partner in the corridor wide planning effort and the additional resources will allow for more robust planning.

Mr. Jason Orthner, rail division director, stated that the S-Line falls into the category of a high performance rail which is an "in-between" of a freight line and a super high speed line. The design speeds in longer stretches are up to 110 mph. The time frame of the project, depending on funding, is five to six years. After a question and answer session, the board thanked Ms. White, Mr. Orthner and Ms. Raue for their report.

Economic Development Director Christian Lockamy was next on the agenda to discuss shell building development. He noted that during the board's planning retreat in February, a goal was set to explore options and financials for creating pad ready sites, construction of a shell building and/or repurposing existing buildings to further the county's economic development efforts. He stated that there are many advantages of having shell buildings. Companies are typically shopping for available buildings that they can move into right away. If a building is not available, companies tend to move on to another location that does have a building. Having available buildings would improve the county's competitive position for new business attraction.

Mr. Lockamy provided a listing of communities, by Tier, involved in shell building development and provided information on typical specs, square footage, construction costs, etc. On average, 90 jobs are created for every 100K square foot industrial building. He described how communities construct shell buildings and stated that it can be done by a traditional model or a

public/private model. Under the traditional model, communities borrow funds from a bank or specialized shell building loan pool (USDA REDLG) and create a shell building fund. The public/private model is risk sharing with a private developer meaning the developer must put money or credit capacity at risk. The local government's contribution is the land and sharing of loan payments. He stated that the bottom line is that there are multiple ways to construct a shell building. The traditional model offers more flexibility for local government and more control. Public/private model offers risk sharing and with a private party, but less flexibility. He noted that either way, having existing buildings ready for companies makes a big difference in whether they come to Vance County or not. Next steps involve a presentation to the City of Henderson and the Industrial Park Board. The industrial park board will make a recommendation to the economic development commission, who will then make a recommendation to the board of commissioners. Chairman R. Dan Brummitt stated that he would like this to go through the properties committee before a final recommendation is made to the board of commissioners.

Water District Board

Chairman R. Dan Brummitt called the water district board to order and the February 2021 monthly operations report was presented to the board for information. Chairman Brummitt adjourned the water district board.

Committee Reports and Recommendations

Human Resources Committee – Employee Survey Results: Identifying Areas for Improvement. County Manager Jordan McMillen reported that the committee (Faines, Taylor, & Wilder) met Tuesday, March 30 to discuss the employee survey results and decide on two to three topic areas for the county to focus for improvement. Staff reviewed the survey results, presented positive and negative takeaways and recommended the committee prioritize the following three areas for additional focus with county employees and the school of government:

- Workplace incivility
- Organizational silence
- Morale/burnout/emotional toll of work/turnover/compensation

The committee agreed to prioritizing workplace incivility and organizational silence and decided to revise the third issue to only include morale/burnout/emotional toll of work. Staff intends to coordinate with the school of government and organize small groups of employees that will take deeper dives into these areas and report back to the committee with recommendations later this year.

Human Resources Committee – Personnel Policy Manual Update. Mr. McMillen stated that the committee began reviewing the personnel policy manual updates and discussed the various county hiring authorities outside of the purview of the commissioners and county manager (sheriff, register of deeds, elections board, and social services board). In practice, these hiring authorities typically utilize all or a portion of the county's personnel policies and the committee was made aware that each would have the opportunity to sign and adopt the updated policies once approved. The committee discussed the importance of the outside hiring authorities using policies and recognized that each one is under the financial purview of the county. Additionally, by adopting the county's policies it provides each with the services of the HR Department. The committee decided to come back in mid-April to continue review of the personnel policy changes.

Public Safety Committee – Re-evaluation of Fire Reorganization. Mr. McMillen reported that the committee (Brummitt, Faines & Wilder) met Monday, March 15 to discuss and reevaluate the fire reorganization. Staff presented the following history of board actions relative to the reorganization:

- February 4, 2019 – board approved funding to allow part-time positions at the volunteer fire departments and voted to continue the Golden Belt fire district in its current structure
- August 3, 2020 – public safety committee recommended to cease discussions on fire reorganization; board voted to continue further conversations as to the reorganization plan
- September 8, 2020 – board added flexibility allowing volunteer departments to spread out the use of their part-time positions for 60 hours over the entire week (night or day)
- September 8, 2020 – board voted down proposal to provide two fire positions to the rescue squad from fire tax funds; board expressed no interest in expanding the fire tax to cover rescue services
- March 1, 2021 – board adopted a goal for FY22 which included “to bring closure to the fire reorganization discussion.”

After reviewing the history, the manager presented two larger issues that need to be resolved in order for discussion on the fire reorganization to be closed. Those are as follows:

1. Decide whether there is any interest in dispersing the county fire staff and therefore eliminating the county's career 24/7 fire department as the fire reorganization proposes.
2. Rescue Services – how the county will handle rescue services going forward? The rescue squad's contract expires June 30, 2021 and the board needs to decide whether the county continues paying \$102,775 to the rescue squad annually or whether this service is done in-house.

After reviewing these, the committee suggested a third issue to be added to this list:

3. Revisit redistricting now that Bearpond has achieved a 5/9E ISO rating. The manager suggested that the full board weigh in on the three larger issues to prevent considerable time being spent as was done previously if there is not agreement among board members to proceed with these items. Following this review, Commissioner Brummitt acknowledged the finance director's audit concerns with the fire reorganization and suggested that alternative financial structures could be utilized to accomplish the reorganization. He suggested a total revision of the financials and disputed prior numbers that have been presented showing rescue funding comparisons around the state. He suggested that the fire commission and fire association meet again to develop additional

input on reorganization. Commissioner Faines agreed to assemble the fire commission and echoed that the end goal is to provide the best service for the citizens. Commissioner Wilder questioned in what ways the county was not already providing the best fire services in the county with the changes already made. The committee was agreeable to receiving board input on the larger issues identified.

Motion was made by Commissioner Archie B. Taylor, Jr. to cease discussions to reorganize the structure of the Vance County Fire Department. This motion was seconded by Commissioner Thomas S. Hester, Jr.

Chairman Brummitt stated that this motion was premature because the public safety committee is still reviewing this matter. A recommendation has not yet been made by the committee. Commissioner Carolyn Faines echoed these remarks.

Vote on the motion was ayes – four (4); noes – two (2), with the dissenting votes being cast by Chairman R. Dan Brummitt and Commissioner Carolyn Faines.

Commissioner Archie B. Taylor, Jr. stated that he is concerned with the cost of rescue services in Vance County as compared to surrounding counties. He suggested that rescue services go out for bids this year since the contract with the Vance County Rescue Squad expires this June.

Motion was made by Commissioner Archie B. Taylor, Jr. to direct the county manager to solicit bids for rescue services. This motion was seconded by Commissioner Thomas S. Hester, Jr.

Chairman Brummitt stated that Commissioner Taylor’s costs/numbers for other counties’ rescue services are incorrect. Commissioner Leo Kelly, Jr. stated that he would like to have additional information on this matter and see the numbers for himself before taking a vote.

Motion was made by Commissioner Leo Kelly, Jr. to table the motion to direct the county manager to solicit bids for rescue services until additional information is made available to the full board. This motion was seconded by Commissioner Carolyn Faines and vote was ayes – five (5); noes – one (1), with the dissenting vote being cast by Commissioner Archie B. Taylor, Jr.

Finance Director’s Report

Surplus Property. Finance Director Katherine Bigelow advised that the Register of Deeds Office has a variety of chairs in very poor condition that have been removed from the basement. Social Services has three Crown Vics that have high mileage and ongoing maintenance issues. These vehicles are no longer in use.

Description	Reason No Longer Needed	Department
Nine Chairs	Poor condition	Register of Deeds

2009 Ford Crown Vic	High mileage; maintenance issues	Social Services
2006 Ford Crown Vic	High mileage; maintenance issues	Social Services
2006 Ford Crown Vic	High mileage; maintenance issues	Social Services

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the property presented as surplus and authorize the finance director to dispose of said property accordingly as allowed by state statute.

New EMS Billing/Collections Contract. Ms. Bigelow reported that on February 12, 2021 the finance and administration department sent out an RFP for EMS billing and collections. On March 12, 2021 the county received three (3) bids. After reviewing the bids, the recommended provider is Colleton Software, Inc./Tarheel Medical Billing. Colleton offers longer collection timeframes, higher patient pay percentages, lower write off averages, quicker processing, and higher price per call average. Colleton operates in a number of North Carolina counties and would provide Vance County a rate of 5.49% of collections. She stated that she believes we are at a point where we need to be more pro-active with collections and feels that Colleton will help us do that.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to approve Colleton Software, Inc./Tarheel Medical Billing as the county's new EMS billing and collections company and authorize staff to prepare and finalize necessary contracts for implementation.

County Attorney's Report

Amendment to Procedure for Purchasing REO Properties. County Attorney Jonathan S. Care stated that over the last few weeks, the county has received numerous offers on surplus properties. The majority of the deposits for these offers have been in cash. For security purposes, he requested that the county no longer accept cash and only accept cashier's checks or certified funds.

Motion was made by Commissioner Archie B. Taylor, Jr. to amend the procedure for purchasing county owned properties and no longer accept cash deposits and only accept cashier's checks or certified funds. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

REO Properties – Bid Acceptance Resolutions. County Attorney Jonathan S. Care noted that during previous meetings, the board of commissioners approved the public sale process for E. Andrews Avenue Lot – Parcel 0079 03034; Andrews Avenue Lot – Parcel 0079 03035; Andrews

Avenue Lot – Parcel 0079 03036, East Avenue Lot – Parcel 0079 03038, 710 Marshall Street – Parcel 0091 03008, 509 Grant Street – Parcel 0096 04016, 513 Grant Street – Parcel 0096 04017; and 1335 Epsom Road – Parcel 0216 04002. The properties have been through the upset bid process and the board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following resolutions accepting the bids for E. Andrews Avenue Lot – Parcel 0079 03034; Andrews Avenue Lot – Parcel 0079 03035; Andrews Avenue Lot – Parcel 0079 03036, East Avenue Lot – Parcel 0079 03038, 710 Marshall Street – Parcel 0091 03008, 509 Grant Street – Parcel 0096 04016, 513 Grant Street – Parcel 0096 04017; and 1335 Epsom Road – Parcel 0216 04002:

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

E. Andrews Avenue Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0079 03034.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 1, 2021, a notice was published in the *Daily Dispatch* on **February 12, 2021**, stating that said offer by **Kimberly Johnson** in the amount of **\$1,791.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **A. Grace Housing, LLC**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 26, 2021**, stating that said offer by **A. Grace Housing, LLC** in the amount of **\$2,541.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **A. Grace Housing, LLC** in the amount of **\$2,541.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

Andrews Avenue Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0079 03035.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 1, 2021, a notice was published in the *Daily Dispatch* on **February 12, 2021**, stating that said offer by **Kimberly Johnson** in the amount of **\$1,659.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **A. Grace Housing, LLC**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 26, 2021**, stating that said offer by **A. Grace Housing, LLC** in the amount of **\$2,409.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **A. Grace Housing, LLC** in the amount of **\$2,409.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

Andrews Avenue Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0079 03036.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 1, 2021, a notice was published in the *Daily Dispatch* on **February 12, 2021**, stating that said offer by **Kimberly Johnson** in the amount of **\$1,791.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **A. Grace Housing, LLC**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 26, 2021**, stating that said offer by **A. Grace Housing, LLC** in the amount of **\$2,541.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **A. Grace Housing, LLC** in the amount of **\$2,541.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

East Avenue Lot, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0079 03038.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on February 1, 2021, a notice was published in the *Daily Dispatch* on **February 12, 2021**, stating that said offer by **Kimberly Johnson** in the amount of **\$2,239.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **A. Grace Housing, LLC**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **February 26, 2021**, stating that said offer by **A. Grace Housing, LLC** in the amount of **\$2,989.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***A. Grace Housing, LLC*** in the amount of ***\$2,989.00*** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of ***\$1,850.00*** from ***A. Grace Housing LLC*** for the purchase and sale of County owned real property, which is more particularly described below:

710 Marshall Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0091 03008.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***March 4, 2021*** stating that said offer from ***A. Grace Housing LLC*** in the amount of ***\$1,850.00*** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***A. Grace Housing LLC*** in the amount of ***\$1,850.00*** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of ***\$3,225.00*** from ***Nahid Sanaei*** for the purchase and sale of County owned real property, which is more particularly described below:

509 Grant Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0096 04016.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **March 4, 2021** stating that said offer from **Nahid Sanaei** in the amount of **\$3,225.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Nahid Sanaei** in the amount of **\$3,225.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$3,877.00** from **Nahid Sanaei** for the purchase and sale of County owned real property, which is more particularly described below:

513 Grant Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0096 04017.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **March 4, 2021** stating that said offer from **Nahid Sanaei** in the amount of **\$3,877.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Nahid Sanaei** in the amount of **\$3,877.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$5,297.00** from **Danielle Harris** for the purchase and sale of County owned real property, which is more particularly described below:

1335 Epsom Road, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0216 04002.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **March 4, 2021** stating that said offer from **Danielle Harris** in the amount of **\$5,297.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Danielle Harris** in the amount of **\$5,297.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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REO Properties – New Offers. Attorney Care stated that 20 offers have been received for real property located at 421 Alexander Avenue – Parcel 0028 05007, 403 Bobbitt Street – Parcel 0060 04002A, First Street Lot – Parcel 0066 02006, 2229 St. Matthews Street – Parcel 0067 01003, 2257 St. Matthews Street – Parcel 0067 01008, 813 Roberson Street – Parcel 0068 02015, Rockspring Street Lot 7 – Parcel 0069 04002, Rockspring Street Lot 6 – Parcel 0069 04010, Johnson Street Lot – Parcel 0071 04015, 601 East Avenue – Parcel 0079 04002, Swain Street Lot – Parcel 0084 02003, Booth Avenue Lot – Parcel 0084 02017, 515 Hilliard Street – Parcel 0091 05006, Southerland Street Lot – Parcel 0091 05011, 1022 Standish Street – Parcel 0091 07005, 521 Neathery Street – Parcel 0093 03012, 705 Jefferson Street – Parcel 0097 01001, 741 Jefferson

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
403 Bobbitt Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **403 Bobbitt Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0060 04002A**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$3,800.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by *Paulita Garcia Vasquez*; and

WHEREAS, *Paulita Garcia Vasquez* has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
First Street Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **First Street Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0066 02006**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,800.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Paulita Garcia Vasquez**; and

WHEREAS, **Paulita Garcia Vasquez** has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier’s check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others

in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
2229 St. Matthews Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **2229 St. Matthews Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0067 01003**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$3,100.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Rosalinda Grady**; and

WHEREAS, **Rosalinda Grady** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier’s check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt **(signed)**
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom **(signed)**
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
2257 St. Matthews Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **2257 St. Matthews Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0067 01008**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$3,200.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Rosalinda Grady**; and

WHEREAS, **Rosalinda Grady** has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:**

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
813 Roberson Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **813 Roberson Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0068 02015**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,300.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Paulita Garcia Vasquez**; and

WHEREAS, **Paulita Garcia Vasquez** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
Rockspring Street Lot 7, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Rockspring Street Lot 7, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0069 04002**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,600.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by *Rosalinda Grady*; and

WHEREAS, *Rosalinda Grady* has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the

approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
Rockspring Street Lot 6, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Rockspring Street Lot 6, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0069 04010**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,400.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Rosalinda Grady**; and

WHEREAS, **Rosalinda Grady** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid

having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
Johnson Street Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Johnson Street Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0071 04015**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,350.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Jon K. Brent**; and

WHEREAS, **Jon K. Brent** has paid the required deposit in the amount of **\$750.00** with his offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:**

WHEREAS, Vance County owns certain real property with an address of **601 East Avenue, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0079 04002**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,848.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by ***Rosalinda Grady***; and

WHEREAS, ***Rosalinda Grady*** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
Swain Street Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Swain Street Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0084 02003**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,640.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by ***Rosalinda Grady***; and

WHEREAS, ***Rosalinda Grady*** has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others

in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
Booth Avenue Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Booth Avenue Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0084 02017**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,440.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Paulita Garcia Vasquez**; and

WHEREAS, **Paulita Garcia Vasquez** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier’s check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
515 Hilliard Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **515 Hilliard Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0091 05006**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$4,954.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Rosalinda Grady**; and

WHEREAS, **Rosalinda Grady** has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:**

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
Southerland Street Lot, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **Southerland Street Lot, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0091 05011**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$2,701.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Paulita Garcia Vasquez**; and

WHEREAS, **Paulita Garcia Vasquez** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time**.

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
1022 Standish Street, Henderson, NC 27536

WHEREAS, Vance County owns certain real property with an address of **1022 Standish Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0091 07005**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,479.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Paulita Garcia Vasquez**; and

WHEREAS, **Paulita Garcia Vasquez** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the

approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt **(signed)**
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom **(signed)**
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
521 Neathery Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **521 Neathery Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0093 03012**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$5,527.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Paulita Garcia Vasquez**; and

WHEREAS, **Paulita Garcia Vasquez** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid

having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
705 Jefferson Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **705 Jefferson Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0097 01001**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$3,154.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Nahid Sanaei**; and

WHEREAS, **Nahid Sanaei** has paid the required deposit in the amount of **\$750.00** with her offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:**

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
741 Jefferson Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **741 Jefferson Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0097 01005**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$5,313.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by ***Nahid Sanaei***; and

WHEREAS, ***Nahid Sanaei*** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.

2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time**.

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
211 Hawkins Drive, Henderson, NC 27536

WHEREAS, Vance County owns certain real property with an address of **211 Hawkins Drive, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0111 03003**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$2,100.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by *Rosalinda Grady*; and

WHEREAS, *Rosalinda Grady* has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS
RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the

approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by **a Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

.

**RESOLUTION AUTHORIZING UPSET BID PROCESS FOR
SALE OF REAL PROPERTY
202 Hawkins Drive, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **202 Hawkins Drive, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0111 04006**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$2,350.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Rosalinda Grady**; and

WHEREAS, **Rosalinda Grady** has paid the required deposit in the amount of **\$750.00** with her offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

County Manager's Report

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following proclamation designating April 10 – 24, 2021 as Spring Litter Sweep in Vance County:

P R O C L A M A T I O N
by the
Vance County Board of Commissioners
in
Recognition of the 2021 Spring Litter Sweep

WHEREAS, in conjunction with the North Carolina Department of Transportation, Vance County supports and encourages participation in the Spring 2021 roadside cleanup effort to ensure clean and beautiful roads throughout the County; and

WHEREAS, the Spring 2021 Litter Sweep roadside cleanup campaign will occur April 10 - 24. The County urges all communities, civic and professional groups, businesses, churches, schools, families, and individual citizens to participate in the cleanup effort by sponsoring and organizing roadside cleanup teams; and

WHEREAS, Adopt-A-Highway volunteers, community service workers, community leaders, civic and community organizations, businesses, churches, schools, and environmentally concerned citizens conduct local cleanups during Litter Sweep and may receive Certificates of Appreciation for participation; and

WHEREAS, the natural beauty of our State and County, in addition to a clean environment, is a source of great pride for all Vance County residents, attracting tourists and aiding in the recruiting of new industries; and

WHEREAS, the cleanup effort will increase the awareness of the need for cleaner roadsides, emphasize the importance of anti-litter campaigns, and emphasize the recycling of solid wastes such as glass, metals, and plastics; and

WHEREAS, the Litter Sweep cleanup will be a part of educating the children and citizens of the County regarding the importance of a clean environment to the quality of life in Vance County.

NOW, THEREFORE BE IT PROCLAIMED, that the Vance County Board of Commissioners does hereby recognize April 10 - 24, 2021 as “Spring Litter Sweep” in Vance County and encourages all citizens to take an active role in making the community a cleaner and more beautiful place in which to live.

THIS, the 5th day of April, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman

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Commissioner Gordon Wilder expressed his concerns with the amount of debris from the recent ice storm still laying on the sides of the roads and in the rights-of way. Commissioner Leo Kelly, Jr. noted that the trees on Andrews Avenue at the Blacknall Cemetery are hanging over the road so that tractor trailers cannot pass that area without moving into the left lane. The board directed the county manager to contact Frank Carpenter with NC DOT regarding these matters and request him to come before the board during its May meeting to provide an update to the board.

Records Preservation – Register of Deeds. Mr. McMillen reported that the Register of Deeds is completing preservation of original marriage licenses having completed similar work in 2019 and 2020. The next group to be preserved are marriage licenses from 1926. North Carolina

law requires approval from the board to remove records for greater than 24 hours. The records will be taken to Greensboro for approximately 18-22 weeks to complete the preservation process.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Leo Kelly, Jr., vote unanimous, to approve the following resolution authorizing documents to be taken offsite from the Register of Deeds Office for the purpose of preservation:

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RESOLUTION
by the
Vance County Board of Commissioners
To authorize documents to be moved off-site from
the Register of Deeds Office for purpose of Preservation

WHEREAS, the Register of Deeds is an elected official with primary duties deemed to be a major custodian of records in county government, including maintenance and protection of such records; and

WHEREAS, Vance County Register of Deeds Cassandra D. Neal has determined the need for preservation of Original Marriage License which are currently stored in the Vance County Register of Deeds Office dated 1926, whereas the year, number of records and volume of pages including any documentary attachments as follows: (1926 (vol. 13 pgs. 1-328)).

WHEREAS, such preservation requires said records to be taken to the office of Kofile, in Greensboro, N.C., 18-22 weeks or until marriage preservation is completed; and

WHEREAS, North Carolina General Statute 153A-436(b) only allows a Register of Deeds to approve removal of public records for a maximum of twenty-four hours, with a longer absence to be approved only by the board of county commissioners.

NOW THEREFORE BE IT RESOLVED, that the Vance County Board of Commissioners does approve the request of duly elected Vance County Register of Deeds Cassandra D. Neal for removal from the Vance County Register of Deeds Office of original marriage licenses dated (1926), whereas the years, number of records, and volume of pages including any documentary attachments as follows: (1926 vol. 13 pgs. 1-328). These documents are to be transported by Kofile Staff to the Greensboro office for the purpose of preservation of said documents.

This the 5th day of April, 2021.

R. Dan Brummitt (signed)
Vance County Board of Commissioners

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Old Animal Shelter Lease – Ruin Creek Animal Protection Society. Mr. McMillen stated that the county has an existing lease arrangement with Ruin Creek Animal Protection Society (RCAPS) for use of the county’s old animal shelter to support its animal rescue work. The work of RCAPS has provided a tremendous benefit to the county’s animal services department and is critical to the county’s success in maintaining a low euthanasia rate at the shelter. The current lease arrangement permits RCAPS to use the old shelter at no cost for office purposes, temporary

EMS 24/72 Schedule Transition Update. Mr. McMillen stated that during the February meeting the board authorized staff to transition EMS to a 24/72 schedule prior to July 1st. In order to make the transition, staff is working to fill vacancies within the department as well as to hire an additional nine authorized positions to add the fourth shift. Over the past month a total of four full-time and two part-time employees have been hired and within the next week interviews will occur to fill three more full-time and two more part-time slots. The department currently has 24 of its 38 positions filled and has eight Paramedic/EMT positions and a division chief position it is working to fill. Based on current staffing levels, EMS could transition to 24/72 but could not guarantee two ambulances operating per shift. In order to transition schedules, staff is aiming to have a baseline of full-time staff that could operate three ambulances consistently across the four shifts. It is anticipated that adequate staffing could be in place by early May to allow the new schedule to commence.

Motion was made Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following consent agenda items as presented: Budget Amendments #25 and #26, Budget Transfers #7 and #8, February 2021 Tax Refunds and Releases, departmental monthly reports, and the minutes of the March 1, 2021 regular meeting.

[illegible]

Revenue Amendment Request	Account Number	Revenue Increase (Decrease)
Firefighters Burned Children Fund Grant	10-380-438078	1,000
Total Revenue Increase (Decrease)		\$ 1,000

Expenditure Amendment Request	Account Number	Expense Increase (Decrease)
Firefighters Burned Children Fund Grant	10-531-500058	1,000
Total		\$ 1,000

Purpose: Grant applied for and received by the fire department for camera equipment.

Authorization: Vance County Board of Commissioners
April 5, 2021

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Budget Amendment #26
FY 2020-2021
Social Services

Revenue Amendment Request	Account Number	Revenue Increase (Decrease)
SHIIP Grant	10-349-434904	3,366
Total Revenue Increase (Decrease)		\$ 3,366

Expenditure Amendment Request	Account Number	Expense Increase (Decrease)
SHIIP Grant	10-611-500148	3,366
Total		\$ 3,366

Purpose: Received \$8,384 for SHIIP grant which is \$3,366 higher than originally budgeted.

Authorization: Vance County Board of Commissioners
April 5, 2021

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Budget Transfer #7
FY 2020-2021
Debt Service Fund to CIP Fund

Transfer From:	Account Number	Amount
Due To/From General to Debt Service	20-397-439710	(436,305)
Due To/From General to CIP	61-397-439710	436,305
Total		\$ 436,305

Transfer To:	Account Number	Amount
Due To/From General to Debt Service Interest	20-660-500627	(199,945)
Due To/From General to Debt Service Principle	20-660-500628	(236,360)
CIP Fund Balance	61-660-500062	436,305
Due To/From General to Debt Service	10-696-500063	(436,305)
Due To/From General to CIP	10-696-500067	436,305
Total		\$ 436,305

TAXPAYER NAME	TAX YR	REAL	PERSONAL	SOLID WASTE FEE	REASON
YOUNG ROSA L. & OTHERS	2020	9.79	0	117	CORRECT VALUE
TOTAL		1986.1	1741.68		
GRAND TOTAL	3727.78				

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MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-Offs, Cooperative Extension, Economic Development, EMS, Human Resources, Information Technology, Parks and Recreation, Planning and Development, Tax Collections and Veterans Service.

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Miscellaneous

Appointments. The following appointments were presented to the Board for consideration:

Public Health Board – three year term
Reappoint Steve Wilson and Julia Faulkner

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the appointments as presented.

As there was no further business, at 8:30 p.m., motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, that the meeting be adjourned.

Approved and signed May 3, 2021.

R. Dan Brummitt **(signed)**
R. Dan Brummitt, Chairman